

25SMCV06837 25SMCV06837

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Case Number: 25SMCV06837 Hearing Date: September 21, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 21, 2026

CASE NUMBER

25SMCV06837

MOTION

Motion to Strike Portions of First Amended Complaint

MOVING PARTIES

Defendants Glenn Feig, individually and on behalf of Feig
Family Trust and Mike Larocca, individually and on behalf of
Larocca/Freudenberger Trust

OPPOSING PARTIES

Plaintiffs Grace Bindley and Max Kidd

MOTION

The operative First Amended Complaint ("FAC") filed by Plaintiffs Grace Bindley and Max Kidd ("Plaintiffs") against Defendants Larocca/Freudenberger Trust; Feig Family Trust; Glenn Feig; and Mike Larocca ("Defendants") alleges ten causes of action as follows:

1.

Breach of warranty of habitability (Civil Code, § 1941.1)

2.

Breach of warranty of habitability (Health & Safety Code, § 17920.3)

3.

Breach of warranty of habitability (Civil Code, § 1942.4)

4.

Negligence – premises liability

5.

Nuisance

6.

Intentional infliction of emotional distress

7.

Breach of contract

8.

Breach of covenant of quiet enjoyment

9.

Fraud/deceit/intentional misrepresentation of fact

10. Bad

faith retention of security deposit (Civil Code, § 1950.5)

Defendants now move to strike the FAC's request for punitive damages and attorney fees, and related allegations. Plaintiffs oppose the motion.

REQUEST
FOR JUDICIAL NOTICE

Defendants request judicial notice
of the following:

.

Exhibit A: the Complaint filed in this action on
December 30, 2025

.

Exhibit B: Defendants' Motion to Strike Portions
of the Complaint filed on or about June 8, 2026

.

Exhibit C: the Court's Minute Order dated July
9, 2026 granting Defendants' Motion to Strike Portions of the Complaint with
leave to amend.

Judicial notice may be taken
of records of any court in this state.
(Evid. Code, § 452, subd. (d)(1).)

Because the above exhibits are all part of the Court's records for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes
judicial notice of the existence, filing, and legal consequences of the above documents filed in this matter as court records, but not the truth of the

allegations or other hearsay statements contained therein.

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

a.

Punitive Damages

In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in

conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3),
emphasis added.)

Further, a plaintiff must

assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To

wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.)

"When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate

notice of the kind of conduct charged against him." (G. D. Searle & Co.

v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v.*

Snepp, the Court of Appeal noted that the plaintiffs' assertions related to

their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz*

Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643

[plaintiffs alleged "the conduct of Defendants was intentional, and done

willfully, maliciously, with ill will towards Plaintiffs, and with conscious

disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the

malicious conduct of Defendants. Defendants' conduct justifies an award of

exemplary and punitive damages"]; see also *Grieves*

v. Superior Court (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an

intentional tort was committed is not sufficient to warrant an award of

punitive damages. Not only must there be

circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim"].)

Here, Plaintiffs allege:

2.

Plaintiffs seek damages from Defendants for their wanton failure to properly

maintain, control or repair Plaintiffs' respective leased Premises of the subject property, located at 29235 Heathercliff Road, Unit #7, Malibu, CA 90265 (hereinafter "Subject Property" or "Premises").

3. This

case involves claims of slum housing conditions, including, but not limited to, mold infestation and deplorable living conditions in violation of Civil Code §§ 1941 & 1942, Health and Safety Code (H &S) §17920, and related subsections.

4.

Moreover, Plaintiffs have been deceived and defrauded by the agents, managers or employees of Defendants into believing that the unit they were renting was safe, habitable and free from toxic mold, and other uninhabitable conditions. Defendants intentionally concealed and suppressed facts from the Plaintiffs that the overall Premises were and had been infested by toxic mold, and other uninhabitable conditions before the Plaintiffs moved into their individual residential unit. Defendants have further engaged in fraudulent manipulation of utility equipment and utility charges for the subject Unit, with the result of forcing Plaintiff to pay utility charges for some/all other tenants where Plaintiffs have no such obligation under the lease or the law. In so doing, Plaintiffs have incurred significant expense caused by the Defendants' illegal misconduct.

5. This

lawsuit concerns the uninhabitable conditions of a residential apartment complex, consisting of multiple units, owned, managed, operated and maintained by the Defendants and Does 1-50 inclusive, as well as other rental property located within the County of Los Angeles. As a result of Defendants' failure to repair and maintain the Subject Property, in a reasonable safe condition, in that they failed to properly maintain the property, Plaintiffs endured slum-type living conditions resulting in financial loss, personal injury and emotional distress.

6. As a

result of Defendants' failure to properly maintain the Premises, Plaintiffs were forced to endure exposure to dangerous levels of toxic mold, and other hazards. Defendants failed to disclose, inspect, or warn Plaintiffs of the presence of these filthy infestations at the premises before they moved into the Premises even though Defendants had actual and constructive notice of the

infestations. Moreover, Defendants, by and through their agents, employees and managers, intentionally concealed the infestations from Plaintiffs in order to induce them into providing a substantial security deposit and remaining as tenants for an extended period of time.

7. As

further alleged herein, at all relevant times, the subject premises were and are intentionally and/or negligently maintained by Defendants in an abhorrent state of disrepair. In such maintenance of disrepair of the premises by Defendants, Defendants and each of them, permitted infestation of the premises with vermin and pestilence, including but not limited to exposure to dangerous levels of toxic mold and other uninhabitable living conditions. As of the date of filing of this matter, Plaintiffs are informed and believe, that the entirety of the subject premises is infested with toxic mold of the individual unit occupied by Plaintiffs during all relevant times herein alleged.

8.

Between July 2024 and June, 2025, Plaintiffs repeatedly notified Defendants of the defects in the subject premises, including but not limited to the pervasive infestation of the subject premises with exposure to dangerous levels of toxic mold and other uninhabitable conditions. In spite of repeated and persistent notice to Defendants, Defendants failed and refused to remedy the situation and cure all defects in the premises.

9.

Between July 2024, and June, 2025, Plaintiffs repeatedly advised Defendants of personal injuries and harm caused to Plaintiffs by exposure to exposure to dangerous levels of toxic mold in Plaintiffs' apartment unit. Defendants failed and refused to remediate this dangerous condition. Furthermore, Defendants actively sought to conceal the existence and persistence of this dangerous condition on the premises from Plaintiffs.

10. The

defective conditions of the subject property were not caused by the wrongful or abnormal use of the subject property by Plaintiffs or anyone acting under Plaintiffs' authority, direction, or control.

11.

Defendants' failure to maintain the dwellings in a decent, safe and habitable condition has harmed Plaintiffs, who now seek damages for the injuries to which

Defendants have subjected them. This then directly and proximately caused the physical injuries to Plaintiffs described hereinbelow.

24.

Plaintiffs are informed and believe and thereon allege that at all times herein the named Defendants have acted in concert in their capacities as owners, lessors, and/or managers of the Subject Property to violate Plaintiffs' rights in order to maximize their profits by keeping the Subject Property fully rented, even with the knowledge of repeated water intrusions into units on the property, and repeated toxic mold infestations on the premises.

27.

Plaintiffs are informed and believe and thereon allege that each Defendant was, and is, the agent, servant, employee, partner, alter ego, and/or joint venturer of each other Defendant, and that in doing the things alleged herein, each was acting in the scope of such agency, employment, partnership, and/or joint venture, and was acting as the alter ego of each other Defendant. At all times mentioned herein, DOES 1-50, and each of them were the shareholders, directors and/or officers, and alter egos of Defendants, and in doing the things herein described were acting within the scope of their authority as such shareholders, directors and/or officers, and alter egos, and that the Court award judgment to Plaintiffs as against such or all Defendants, either jointly or separately, as may be found liable.

28.

There exists, and at all times herein mentioned there existed, a unity of interest and ownership between Defendants such that any individuality and separateness between Defendants, is the alter ego of each other, and was, a mere shell and sham without capital, assets or stock.

[...] Defendants, and each of them, constructed and/or renovated the subject property which contained mold and/or fungi levels which exceeds those that are permissible and deemed dangerous and hazardous. Furthermore, the Defendants, and each of them, failed to properly avoid, prevent, remedy, and/or remove the defective condition which resulted in the dangerous and harmful molds and/or fungi and other contaminants from the subject property. Therefore, the subject property remained in a deleterious condition contaminated with mold and/or fungi, bacteria and other airborne contaminants and/or other irritants, causing, creating, and producing the hereinabove described health hazards to Plaintiffs.

35. The

defective conditions of the subject property were not caused by the wrongful or abnormal use of the subject property by Plaintiffs or anyone acting under Plaintiffs' authority, direction, or control. At all times relevant prior to Defendants' negligent conduct at the subject property, Plaintiffs were in good health and had no known physical ailments or conditions which impaired their health, lifestyle, and/or ability to work.

36. Not

until subsequent to approximately June 5, 2025, did Plaintiffs become aware that a causal connection existed between the dangerous levels of deleterious toxins and "mold" contaminants in Plaintiffs' living environment at the subject property and Plaintiffs' injuries. Plaintiffs formally vacated the subject premises in or about June of 2025 due to defendants' refusal to repair the hazardous and uninhabitable conditions on the premises.

37.

Plaintiffs are informed and believe that prior tenants at the Subject Premises had put the Defendants on notice of toxic mold infestation at the Subject Premises. Prior tenants' complaints were repeatedly ignored by Defendants. As a result the prior tenants were forced to move out the Subject Premises. Despite having knowledge of the mold infestation Defendants refused to remediate and intentionally continued to rent the subject premises to tenants including Plaintiffs

38. As a

direct and proximate result of Defendants' conduct or inaction, Plaintiffs suffered general damages in an amount to be established according to proof at trial, but in excess of the jurisdictional minimum of the Superior Court.

39.

Plaintiffs immediately reported the problems to Defendants, and Defendants responded by promising to address the problem. Defendants have never addressed or repaired the problem.

41.

Defendants have failed to remedy the issues raised by Plaintiffs by maintaining a company policy of apathy and/or denial.

42. At

no time have Defendants offered relocations expenses, replacement costs to the Plaintiffs, or allowed the Plaintiffs a reasonable off-set for the harms and losses each have sustained as a result to the known habitability issues in their respective units, and the subject premises.

43. At

all relevant times, Plaintiffs consistently made timely rental payments on time. Plaintiffs continued to make monthly rent payments after vacating the premises. Defendants have failed to return any rent Plaintiffs have paid.

45.

Plaintiffs are informed and believe that the Premises have been subject to multiple inspections by the County of Los Angeles and City of Los Angeles that resulted in citations against Defendants for multiple violations of the California County Code, the California Health and Safety Code and the Los Angeles County Municipal Code.

47.

During Plaintiffs' tenancy the subject premises sustained massive water intrusions that caused damage to Plaintiffs' unit. 48. Defendants failed and refused to timely and properly remediate the dangerous fixtures and prevent exposing Plaintiffs to dangerous levels of toxic mold and substances during Plaintiffs' tenancy.

49.

Following the massive water intrusions, Defendants failed to timely and properly remediate the situation. As a result, toxic mold developed in Plaintiffs' unit.

50.

Furthermore, between July, 2024, and June 2025, the subject premises became increasingly infested with toxic mold and other uninhabitable conditions.

51.

Despite Plaintiffs' persistent complaints about the toxic mold, water intrusion damage, fungus, and infestations, Defendants have refused to remediate the situation, and the problems continue.

52.

Plaintiffs are informed and believe that in advance of Defendants renting the subject Unit to Plaintiff, Defendants knew that the overall Premises were/are not habitable because of dangerous toxic mold throughout, frequent water intrusions into the property, unrepaired damage to the property, and other issues regarding uninhabitability of the premises. Furthermore, Plaintiffs are informed and believe that the last full time tenant prior to Plaintiffs notified Defendants of presence of uninhabitable conditions in the subject property including but not limited to water intrusion and mold infestation.

53. At

all times, the Premises were to be kept in habitable condition by the Defendants, and that Defendants' failure and refusal to maintain and keep said Premises in habitable condition was and is a material breach of the written agreement. The presence of harmful organisms, like toxic mold, and other harmful matter caused Plaintiffs to become ill. Despite actual knowledge by the Defendants of these conditions, they took inadequate actions, if any, to correct the horrible conditions that Plaintiffs were forced to endure.

54.

Defendants violated the Civil Code by seeking to collect regular rent payments from Plaintiffs when the rental unit was not habitable and by failing to properly maintain pest control on the property.

55.

Plaintiffs are informed and believe and thereon allege that the toxic mold infestations were caused by Defendants' failure to regularly inspect and maintain the living areas of the Subject Property with reasonable care, including proper fumigation.

56.

Plaintiffs are informed and believe and thereon allege that Defendants had prior knowledge of the presence of the toxic mold infestation, and failed to inspect and warn Plaintiffs of this problem.

59.

Plaintiffs notified the Defendants and their agents about the habitability violations but Defendants failed to correct the habitability conditions. The Defendants, and each of them, own other rental properties, and are experienced managers of residential property and are aware that absent appropriate maintenance, serious habitability violations will develop that would seriously

and materially affect the Plaintiffs' quiet and peaceful enjoyment of the Premises.

60.

Plaintiffs gave multiple notices to Defendants and DOES 1-50, inclusive, wherein they mentioned the numerous habitability problems identified above and requested and demanded that Defendants undertake proper remediation and prevention. No appropriate action was taken by Defendants to remedy the situation.

65.

Plaintiffs and public officials informed Defendants about health and safety risks of the Premises associated with exposure to unsafe levels of mold, infestation with toxic mold, and other uninhabitable conditions. Defendants failed to repair the defective and dangerous conditions within a reasonable time.

66.

Plaintiffs repeatedly notified the Defendants of these conditions and requested that Defendants have them repaired. Defendants failed to repair most of the problems at the Premises. Defendants further unlawfully refused to remediate the infestation of toxic mold, and other uninhabitable conditions.

131. The

alleged misconduct of Defendants, and each of them, in knowingly and intentionally exposing Plaintiffs to harmful conditions that did in fact cause injury and harm to Plaintiffs is outrageous misconduct that was clearly in direct and reckless or intentional disregard of the near certainty that Plaintiffs would suffer physical harm and emotional distress from the exposure of these harmful substances by Defendants, and each of them.

132.

Plaintiffs are informed and believe that prior tenants at the Subject Premises had put the Defendants on notice of toxic mold infestation at the Subject Premises. Previous tenants' complaints of presence of toxic mold were repeatedly ignored by Defendants. As a result, the prior tenants were forced to vacate the Subject Premises. Despite having knowledge of the mold infestation Defendants refused to remediate and intentionally continued to rent the subject premises to tenants including Plaintiffs and collect rent.

133.

Furthermore, because of the intentional and outrageous conduct of Defendants, and each of them, as described hereinabove, which included but is not limited to actively concealing the water intrusion and toxic mold from Plaintiff and Defendants' false misrepresentations that at first no such habitability conditions exist and then falsely misrepresenting that Defendants would repair and remediate the situation, and as a legal result thereof Plaintiffs sustained severe emotional distress and mental suffering, all of which has caused, continues to cause, and will cause Plaintiffs great physical and mental pain and suffering, all to Plaintiff's damages in an amount as yet unascertained, but subject to proof. These damages have physically manifested in the form of physical illness, loss of sleep, anxiety, depression, headaches and other physical symptoms, accordingly, plaintiff will seek prejudgment interest, pursuant to the provisions of California Civil Code, Section 3291.

152.

Beginning in or about June, 2024 through June, 2025, the following Defendants, made the following intentional misrepresentations to Plaintiffs:

a. On or

about June 5, 2024, Defendants' property owner and authorized agent GLENN FEIG, acting in his capacity as owner and manager of the subject property, while inducing Plaintiffs to sign the residential lease agreement and to pay rent for the subject Unit, concealed from Plaintiffs that the subject property contained dangerous levels of toxic mold and denied the presence of toxic mold in the Unit in spite of his later admitted knowledge that such mold was present; GLENN FEIG further intentionally misrepresented to Plaintiffs that the Subject Premises was habitable and free from mold infestation. Plaintiffs are informed and believe that previous tenants at the Subject property notified GLENN FEIG that the subject property contained dangerous levels of toxic mold therefore, putting him on notice.

b. In or

about July of 2024, Defendants' property owner and authorized agent GLENN FEIG, acting in his capacity as owner and manager of the subject property, while inducing Plaintiffs to continue living and paying rent for the subject Unit, concealed from Plaintiffs that the subject property contained dangerous levels of toxic mold and denied the presence of toxic mold in the Unit in spite of his later admitted knowledge that such mold was present; Plaintiffs are informed and believe that previous tenants at the Subject property notified GLENN FEIG

that the subject property contained dangerous levels of toxic mold therefore, putting him on notice.

c. On or

about July 18, 2024, Defendants' property owner and authorized agent GLENN FEIG, acting in his capacity as owner and manager of the subject property, while inducing Plaintiffs to continue living and paying rent for the subject Unit, through text message intentionally misrepresented that the subject property contained dangerous levels of toxic mold and denied the presence of toxic mold in the Unit in spite of his knowledge that such mold was present

d. In or

about February 2025, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, made repeated and constant misrepresentations of material facts concerning making necessary and required repairs to the subject property;

e. In or

around July 2024, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, intentionally misrepresented to Plaintiffs on multiple occasions that Defendants would promptly and properly remediate the dangerous and toxic mold infestations, and test the mold and toxic contamination contained in the Subject Property in spite of the fact that Defendants had no intention of ever performing said misrepresentations;

f.

Between July, 2024 through June, 2025, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, concealed from Plaintiffs that the subject property contained toxic mold levels far in excess of safe levels despite having knowledge from complaints of previous tenants that the Subject Property contained dangerous levels of toxic mold;

153. All

misrepresentations made by defendants, and each of them, were false.

154. At

the time defendants, and each of them, made their misrepresentations to Plaintiffs, defendants knew said misrepresentations to be false.

155. At

all relevant times Defendant GLENN FEIG was acting in the capacity as owner and manager of the subject property, actively sought to conceal the hazardous conditions on the Subject Premises from all members of the public, including Plaintiffs through active misrepresentations.

156.

These misrepresentations by Defendants, and each of them, were made in a deliberate effort to deceive and defraud Plaintiffs and to induce them to act in reliance on these misrepresentations in the manner hereinafter alleged, or with the expectation that Plaintiffs would so act.

157. The

intentional misrepresentations made by Defendants, and each of them, to Plaintiffs regarding the mold and toxic contamination and the source thereof were made with the intention of defrauding Plaintiffs of their rights and causing them harm.

158. The

misrepresentations by defendants, and each of them, to Plaintiffs regarding their claim caused Plaintiffs to delay prosecution of their legal rights under the instant action, all to the detriment of Plaintiffs.

160. The

aforementioned conduct of defendants constituted intentional misrepresentations, deceit, and/or concealment of material facts known to the defendants, and each of them, thereby causing Plaintiffs harm to their persons and personal property.

161. The

fraudulent, intentional, callous, willful, wanton and oppressive acts of defendants, as set forth herein-above, are sufficient to warrant the imposition of punitive and exemplary damages against defendants in an amount sufficient to punish and make an example of them. The exact amount of such damages are presently unknown to Plaintiffs, but will be subject to proof at trial.

(FAC ¶¶ 2-10, 10, 24, 27-28, 33, 35-39, 41-43, 45, 47, 49-56, 59-60, 65-66, 131-132, 152-158, 160-161.)

Plaintiffs

premise their request for punitive damages on (1) allegations made “on

information and belief" that prior tenants and/or government officials previously informed Defendants of the uninhabitable conditions; (2) unspecified allegations that Plaintiffs complained about the uninhabitable conditions on numerous occasions, yet Defendants refused to remediate the issue; and (3) allegations that Feig misrepresented to Plaintiffs that the premises were habitable and/or concealed the uninhabitable conditions of the property in or about July 2024 when Defendants leased the property to Plaintiffs.

As

for the allegations made on information and belief that prior tenants and/or government officials previously informed Defendants about the uninhabitable conditions, allegations made "on information and belief" are generally insufficient to satisfy heightened pleading requirements "unless the facts upon which the belief is founded are stated in the pleading." (Dowling v. Spring Valley. Water Co. (1917) 174 Cal.218, 221.) Here, Plaintiffs have not stated the specific facts underlying their "information and belief" that Defendants were previously made aware of the uninhabitable conditions by prior tenants or by government officials.

Regarding

the second category of allegations—that Plaintiffs repeatedly complained about the uninhabitable conditions, yet Defendants refused to remediate the problem—Plaintiffs have not alleged the specific who, what, when, or how of these communications to allege prior knowledge based on Plaintiffs' own complaints with requisite specificity to withstand demurrer. Further, these generalized, conclusory allegations are inconsistent with Plaintiffs' other allegations that Plaintiffs themselves did not become aware of the causal connection between their health issues, which began around August 2024, and the allegedly uninhabitable conditions of the property until June 5, 2025, which was around the same time they vacated the premises. (FAC ¶¶ 31, 36.) If Plaintiffs themselves were unaware of how dangerous the condition of the property was, then it would have been impossible for them to convey that information to Defendants.

Finally,

Plaintiffs' fraud allegations fail for the same reasons. Although Plaintiffs' allege the who (Feig), what (that the premises were free from mold and toxic contamination), and when (July 2024 and February 2025) of the alleged misrepresentations, Plaintiffs do not adequately allege with requisite specificity the basis for Feig's purported knowledge that the representations were false when made. Further, Plaintiffs do not connect the alleged misrepresentations made by Feig to Larocca, other than the conclusory

allegations in paragraphs 27-28 that Defendants are agents, servants, employees, partners, alter egos, and/or joint venturers of each other with a unity of interest and ownership.

Therefore,
the Court finds that Plaintiffs have not alleged oppression, fraud, or malice, with requisite specificity to support the claim for punitive damages against Defendants.

b.
Attorneys' Fees

Plaintiffs
seek attorneys' fees pursuant to the private attorney general doctrine of Civil Code section 1021.5 and pursuant to Civil Code section 1942.4, subdivision (b)(2), which provides that if a landlord collects rent on premises in uninhabitable conditions, under certain circumstances, the prevailing tenant may recoup their reasonable attorneys' fees and costs, and pursuant to Civil Code section 1717 and the underlying lease agreements.

Code of Civil Procedure section 1021.5 provides:

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.

Defendants
argue that this case, which involves a single unit in a single property will not confer a significant benefit on the general public or a large class of persons, notwithstanding the FAC's allegation that any judgment or settlement will impact, "the homeowners and tenants who live in the area around the Subject Property[.]" (FAC ¶ 84.) In opposition, Plaintiffs merely direct the Court to paragraph 84.

The

Court agrees with Defendants that Plaintiffs have not alleged a large class of persons will benefit from an action primarily, if not entirely concerning the habitability of a single unit.

Civil

Code section 1942.4 provides:

(a) A

landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, [...] if all of the following conditions exist prior to the landlord's demand or notice:

(1) The

dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A

public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The

conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The

conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

(b) (1)

A landlord who violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not

less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000).

(2) The prevailing party shall be entitled to recovery of reasonable attorney's fees and costs of the suit in an amount fixed by the court.

(Civil Code, § 1942.4.) Here, Plaintiffs allege:

97. In or about July 2024, through June 2025, Plaintiffs have complained to Defendants about the poor condition of the premises, as stated above.

98. At all relevant times, Plaintiffs timely paid the rent, and Defendants collected without fail, despite the Premises' substantial defects.

99. Plaintiffs are informed and believe that the County of Los Angeles and/or City of Los Angeles has inspected and Defendants' defective premises, and some time after visiting the premises, public officer housing law inspectors provided written notices to the Defendants of their obligation to repair the prohibited conditions. These notices, on the dates listed on the notices/code enforcement orders concerning The Property, were issued as alleged herein. The defective conditions were not caused by any act or omission of Plaintiffs.

100. Plaintiffs are informed and believe that Defendants failed to abate or repair the conditions identified in the Code enforcement orders within 35 days of receiving those notices, during which time the substandard conditions continued to exist without abatement.

101. Even after Defendants were notified by the County and/or City inspector that repairs were needed to the Subject Property, Defendants failed to make timely repairs. Defendants continued to demand and collect rent from the Plaintiffs while the prohibited conditions identified by housing authorities were unabated.

(Complaint ¶¶ 97-100.)

When

alleging noncompliance with a statute, allegations made on information and belief are only proper where the allegations involve matters peculiarly within the knowledge of the defendants and they are supported by a statement of facts upon which the belief is founded. (See Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 542.)

As

discussed above, Plaintiffs have not alleged the factual basis underlying their belief that the City and/or County of Los Angeles visited the premises and issued written notices to the Defendants to repair, when those notices were issued, or that Defendants failed to repair within 35 days and then continued to collect rent.

Civil

Code section 1717 provides:

In any

action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Here,

Plaintiffs allege:

142. The

residential lease agreement between the parties contains a provision entitling the prevailing party to attorney's fees and costs.

(FAC ¶ 142.)

Defendants

argue that the FAC fails to identify the contract provision authorizing recovery of attorneys' fees. Notwithstanding, the FAC now adequately alleges that the residential lease agreement contains such a provision, and Plaintiffs seek attorneys' fees pursuant to that provision. Whether the lease agreement actually contains

such a provision, or whether the provision covers the claims in this action, in whole or in part, are factual issues to be resolved at later stages of the litigation.

Therefore,

the Court grants in part Defendants' motion to strike the requests for attorneys' fees pursuant to Code of Civil Procedure 1021.5 and Civil Code section 1942.4, but denies Defendants' motion to strike the request for attorneys' fees pursuant to the lease agreement and Civil Code section 1717.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiffs

have failed to meet this burden as they do not specify what additional facts could be added to cure the deficiencies identified above.

CONCLUSION AND ORDER

For the reasons stated, the Court grants in part Defendants' motion and strikes Plaintiffs' allegations and requests for punitive damages without leave to amend and without prejudice.

Further, the Court strikes Plaintiffs' allegations and requests for

attorneys' fees to the extent they are premised upon Code of Civil Procedure 1021.5 and/or Civil Code section 1942.4 without leave to amend and without prejudice, but denies Defendants' request to strike Plaintiff's requests for attorneys' fees to the extent they are premised upon the lease agreement and/or Civil Code section 1717.

Further, the Court orders Defendants to file an Answer or Answers to the FAC on or before on or before October 5, 2026.

Further, the Court will enter the proposed Order lodged on August 24, 2026 in conformity with the ruling.

Defendants shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 21, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court